

25STCV17124 25STCV17124

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MOTIONS

TO COMPEL

The Court tenders the following tentative decision in the matter Leslyn Windsor v. Mark 1 Restoration Co., et al., Los Angeles County Superior Court case number 25STCV17124, set for hearing on June 26, 2026. Eastern Columbia Lofts Homeowners Association (Defendant) moves for orders compelling Leslyn Windsor (Plaintiff) to serve responses to Defendant's form interrogatories, set one (FROGs), special interrogatories, set one (SPROGs), and requests for production of documents, set one (RFPs). Defendant also collectively requests \$3,630 in sanctions. Defendant's motions to compel are granted but the Court does not award sanctions.

If a party

to whom interrogatories are directed fails to serve a timely response, that party waives any objection, the party making the demand may move for an order compelling response, and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion unless they acted with substantial justification. (Id., § 2030.290.) And if a party to whom an inspection demand is directed fails to serve a timely response, that party waives any objection, the party making the demand may move for an order compelling response, and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion unless they acted with substantial justification. (Id., § 2031.300.)

Here, Defendant served all relevant written discovery requests via email on December 19, 2025. (Balderas Decl. ¶ 2.) Responses were due on or before January 21, 2026. (Ibid.) Plaintiff failed to timely serve

responses and has thus waived all objections. (Id. ¶¶ 3–5.) Indeed, Plaintiff had still yet to respond as of Defendant’s filing these motions on May 18, 2026. (Id. ¶ 6–7.) Plaintiff provided late responses on June 1, 2026, to all discovery requests after the present motions were filed. (Mobassernia Decl. ¶ 11.) Because of Plaintiff’s failure to respond to the relevant discovery requests within the allotted timeframe, Defendant’s motions to compel discovery pursuant to Code of Civil Procedure sections 2030.290 and 2031.300 were proper. But Plaintiff provided responses which he contends are code-complaint. Because these responses were submitted mid-briefing on this motion, the Court is not in a position to assess the claim. In any event, the motions are granted. If in fact the late responses are adequate, the entry of this Order granting the motions will not matter. Plaintiff may separately seek relief from waiver of objections by filing a motion pursuant Code of Civil Procedure sections 2030.290, subdivision (a) and 2031.300, subdivision (a).

The Court need not impose sanctions with respect to a motion to compel if the Court finds that circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) Here, Plaintiff’s counsel testifies that Plaintiff’s failure to respond was due to their own inadvertence. (Mobassernia Decl. ¶¶ 5–10.) The Court finds this explanation satisfactory and declines to award sanctions. Plaintiff also requests sanctions, but these are also inappropriate because Plaintiff’s initial failure to respond to discovery necessitated the present motions to compel.

Conclusion:

The Court grants Defendant’s motions and does not impose sanctions on either party.